

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, MARCH 18, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**IVER CAPITAL CORPORATION vs. LAURA RAYA HERNANDEZ
Case No. CL25-00119**

Motion by Defendant to Quash Service of Summons for Lack of Personal Jurisdiction

TENTATIVE RULING

The Parties are to appear for hearing as scheduled.

**ARIELLE POSADAS vs. DAVID NIETO
Case No. CU23-02564**

ADRIANS' Demurrer and Motion to Strike

TENTATIVE RULING

Defendant ADRIAN NIETO ("ADRIAN") demurs to Plaintiff ARIELLE POSADAS's complaint alleging negligence related to a motor vehicle collision. ADRIAN alternatively moves to strike the complaint's amendment naming him in place of a Doe defendant, on the same grounds upon which he demurs.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace*